

Court No. - 3

Case :- WRIT - C No. - 7634 of 2022

Petitioner :- Brij Kishor

Respondent :- State Of U.P. And 3 Others

Counsel for Petitioner :- Jagat Narayan Mishra, Pramod Kumar Dwivedi

Counsel for Respondent :- C.S.C., Narendra Kumar Tiwari

Hon'ble Surya Prakash Kesarwani, J.

Hon'ble Jayant Banerji, J.

Heard Sri Jagat Narayan Mishra, learned counsel for the petitioner, learned Standing Counsel appearing for the State-respondents and Sri Ramesh Kumar Tripathi holding brief of Sri N.K. Tiwari, learned counsel for the respondent nos. 3 and 4.

This writ petition has been filed praying for the following reliefs:

"I. Issue a writ, order or direction in the nature of mandamus directing the respondent no.4 to serve the copy of pre-assessment of the penalty amount and give the opportunity to file the objection in respect of Section 126(3) of the Electricity Act, 2003 and also not to recover the amount without pre-assessment as mentioned in the recovery certificate.

II. Issue a writ, order or direction in the nature of mandamus directing to the respondent no.4 to consider the notice letter dated 25.10.2021 (Annexure No. 04) and the reminder letter dated 5.1.2022 (Annexure No.05) according to the provisions of the Electricity Act, 2003."

Learned counsel for the respondent nos. 3 and 4 states on instructions that the petitioner may submit his objection under Para 6.8 of the U.P. Electricity Supply Code, 2005, which shall be considered and decided by the respondent no.4/competent authority in accordance with law by a speaking and reasoned order within a time bound period.

In view of the aforesaid and without expressing any opinion on merits of the case of the petitioner, the writ petition is **disposed of** giving liberty to the petitioner to file an objection before the respondent no.4/competent authority within four weeks alongwith a copy of this order ventilating his grievance. In the event such an objection is filed within the stipulated period, the same shall be decided by the respondent no.4 within next four weeks in accordance with law by a reasoned and speaking order after affording reasonable opportunity of hearing to the petitioner.

Order Date :- 12.4.2022

sfa/